Service Level Agreement and Packages

PAPER-BASED PRINTING SERVICES

Special Terms and Conditions

for

Paper-Based Printing Service

1. Agreement Overview

This Agreement represents a Special Terms and Conditions (STC) and Service Level Agreement ("SLA" or "Agreement") between the Buyer and Printing Service provider. The purpose of this Agreement is to facilitate the implementation of Paper-Based Printing Services for the use of the Buyer or any other designated person/ representative of the Buyer. This Agreement outlines the Scope of Work, Buyer's Obligations, Special Terms and Conditions related to service delivery, and payment of services for mutual understanding of the Stakeholders. The Agreement remains valid till the completion of Services or end of contractual duration (whichever is earlier) unless either superseded by a revised Agreement mutually endorsed by the Stakeholders or terminated by either of the parties thereof.

The Services contracts placed through GeM shall be governed by the following set of Terms and Conditions:

1. General terms and conditions for Services (GTC).
2. Service Specific STC of the Services contracts shall include the Service Level Agreement (SLA) for the Service.
3. BID / Reverse Auction specific ATC.

The above terms and conditions are in reverse order of precedence i.e., ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with the Scope of Work and Service Level Agreement as enumerated in the document shall be construed to be part of the Agreement between Buyer and Service Provider.

2. Objectives and Goals

The objective of this Agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of services to Buyer by Service Provider. The goals of this Agreement are to:

1. Provide clear reference to service ownership, accountability, roles, and responsibilities of both parties.
2. Present a clear, concise, and measurable description of services offered to the Buyer.
3. Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with the conditions specified.
4. To ensure that both the parties understand the consequences in case of termination of services due to any of the stated reasons.

The Agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The Agreement can also be revised/ modified on mutual consent of the stakeholders.

3. Parties to the Agreement

The main stakeholders associated with this agreement are below-

1. **Buyer**: The buyer is responsible to provide clear instructions, approvals, and timely payments for the services availed.
2. **Service Provider**: The service provider is responsible to provide all the required services in a timely manner. The service provider may also include the seller, any authorized agents, assignees, successors, and nominees as described in the Agreement.

The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses service level/ penalties in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.

4. Scope of Services

Paper-based Printing Service shall be provided end-to-end by the Service Provider along-with cost-effective solutions and services to print a wide variety of books, booklets, brochures, forms, envelopes, cards, note cards, flyers, posters, letterheads, forms, business cards, Diary, Planner, Desk Calendar, Wall Calendar, Poster Calendar, Bill Books and any other paper-based printing demand along with a complete customizing package.

The scope of the service requires the Vendor to provide Paper-based Printing Services to the Buyer as per the specifications stipulated by the Buyer.

4.1. Service Details and Standards

1. All the printed orders should be of the desired quantity. Any shortfall in numbers will attract a Deductions.
2. The order should be aligned to the specifications chosen by the buyer. The quality of the material should not deviate from what is chosen by the buyer.

4.2. Defined Timelines

1. Since timely delivery is the biggest essence of the contract, the Service Provider shall ensure that the order should be delivered as and when mentioned by the buyer.Any kind of delay in the delivery of printed orders shall attract deductions..

4.3. Service Assumptions

1. The Service Provider shall not transfer or assign or sublet any part of the service once agreed or any share or interest here in any manner or degree directly or indirectly to any person, firm, or corporation whatsoever.
2. The Service Provider at his/ her own cost will arrange all the equipment(s), materials (in case of printing with the material), and other things/ services, etc. necessary for printing depending on the type of printing (with or without material).

5. Terms & Conditions

5.1. Buyer's Obligations

1. The Buyer Department may choose to provide a specimen in the form of a hard or soft copy indicating the rough layout of tables/graphs/text matters/Photographs of Installations etc. to give an idea in general. This is, however, not to be treated as a sample.
2. The buyer will rigorously verify the materials (content etc) provided for printing for authenticity, clearness, and legibility, before handing them over to the service provider.
3. In case of printing only type of Service, Buyer should provide the required material to Service Provider well on time, to avoid the delay in the start of Printing Service.
4. Price Variation Clause: "It is advisable to include Price Variation Clause in the long-term contracts to take care of the increase/decrease in prices of various ingredients which majorly affect the overall price of the service. Buyers are therefore advised to include the Price Variation Clause (PVC) in the bid document through ATC for long-term contracts. The additional payment, if any, on account of PVC can be done offline till such time online functionality is developed on GeM."

5.2. Service Provider's Obligations

1. The service provider shall ensure the level of service delivered is of the highest professional standard and shall ensure full compliance with the terms and conditions of the contract.
2. The Service Provider shall conduct printing activities and deliver printed material in accordance with the conditions of the Agreement at the time and place and in the manner as specified by the Buyer.
3. The Service Provider shall print, bind, and deliver the work in clear and legible type, form and style and with other fit and proper material in a good and workmanlike manner, and by the process specified, and where a sample is supplied, in accordance therewith.
4. The awarded Service Provider shall deliver 3 (three) hard copies of the initial edited version of the compendium along with a soft copy in Word/PDF or any other preferred format for approval (stage one).
5. The Service Provider shall whenever called upon to do so, give full particulars, and information with regard to any work in hand and shall also permit an official deputed by the Buyer to inspect his printing premises at all required times. The Service Provider shall give assistance and information as may be required by him/ her in connection with any contract or contracts.
6. Page Design should be given by Service Provider based on the Buyer's requirement. The service provider shall provide a sample copy with the final page design to the Buyer before proceeding with the printing of the complete assignment. The service provider should clearly work as per detailed layout design, font size, style, color, alignment, spacing, pagination, etc.

6. Payment Terms & Conditions

6.1 Payment shall be made once the service provider submits the invoice online on GeM along with other relevant documents and after generation of service delivery acceptance certificates (SDAC) by consignee for the submitted invoice

6.2 All deductions (If applicable) will be accounted/deducted during SDAC generation before making the payments. Payment will be made through bank transfer only in no circumstance cash/ cheque payment will be made.

7. Deductions and Liquidity Damages

Breach of SLA is defined as performance lower than requisite performance in this Agreement. The following conditions shall specify breach of contract and the Buyer shall have the right to immediately terminate the Agreement.

1. Cumulative penalties reach 10% of the Contract Value; and
2. Subcontracting or outsourcing of the contract/ Agreement, in part or whole.

Penalties shall be levied on the Service Provider, for the violation of the Service Level Agreement as mentioned below:

#	Nature of Default	Description of default	Deductions
1	**Defective/Damaged Goods**		
	a. Defect/Damage of up to 25% of the order (by volume)	Any kind of damage/destruction of printed material and/or Damage of product during logistics, or defect in the product such as low quality of material/printing, error in content, printing not according to buyer's specifications: Improper logo/pictures/color shades/improper binding/finishing, etc.	i. 2% of the contract value
	b. Defect/Damage from 25%-50% of the order (by volume)		ii. 3% of the contract value
	c. Defect/Damage of more than 50% of the order.		iii. 4% of the contract value or option to terminate the contract.
2	**Delay in Delivery**	Delay in delivery of the order or order not received at the desired location on time, as specified.	0.5% per week. Cumulative every week.

3	**Non-supply of complete order (Shortfall)**	The quantity of order supplied is less than ordered.	
	a. Up to 25% of the order		a. 3% of the contract value
	b. from 25% - 50% of the order		b. 5% of the contract value
	c. more than 50% of the order		c. 7% of the contract value or option to terminate the contract

The maximum cumulative deductions on all the occasions put together shall not exceed 10% of the contract value and exceeding the limit is liable for cancellation of the Agreement.

8. Amendment of contract

During the service delivery period, some conditions may occur when the Buyer and/ or Service Provider may require amending the Agreement, some of such conditions may be as followed-

8.1 Amendment of the Contract after the event of Force Majeure: In case of occurrence of any exceptional event/ circumstance which has affected either party directly to perform the agreed services, the agreement can be amended. However, the cause, evidence, and nature of such effect shall be notified to the other party.

8.2 Amendment in statutory variations: All statutory variations leading to an increase in the cost of the contract will be debited to the buyer accounts.

8.3 Amendment of the Contract as per both parties' consent: Amendment of the Contract shall be done as per mutual consent of both the parties; no party shall be made liable to pay/ get any compensation for agreement amendment. However, the variation put together shall not reduce or exceed 25% of the contract value.

9. Termination of Contract

The Agreement shall come to an end either on completion of the Contract Period or shall be terminated for the following reasons:

9.1 Mutual consent: The contract may be terminated based on mutual consent in case the services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including the notice period.

9.2 Breach of contractual obligations: Any incidents considered as a breach of contract will result in immediate termination of services. The Buyer shall have the right to terminate the Contract effective immediately by giving written notice to the Service Provider if, the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14 days after receiving notice requiring it to do so.

9.3 Breach of SLAs: The contract may also be terminated if i) the cumulative penalties rise to 10% of the contract value ii) repeated breach of any SLA beyond 3 instances as per buyer discretion.

However, termination of this Contract shall not affect any accrued rights or remedies of either party.

10. Calculation Formula

Total Contract Value will be calculated as:

Total Contract Value = n * r * q, Where

n = No. of Pages per Item

r = Rate per Page

q = Quantity (No. of items)

Cost of Add-ons (if selected by the buyer in bid) will be added to the above values. Calculation of Add-Ons will be as per the below formula:

Add-Ons Value = (r1 + r2 + r3 + r4.....)*q

where r1, r2, r3, r4, etc. are the rates quoted by the service provider for all individual Add-On services,

and **q** = Quantity (No. of items)